

Chapter 9

MISCELLANEOUS OFFENSES*

Sec. 9-1.	Obscene material.
Sec. 9-2.	Abandonment of refrigerators, etc.
Sec. 9-3.	Reserved.

***Cross references**—Department of police, § 2-281 et seq.; general penalty, § 1-12; police, Ch. 13.

Sec. 9-1. Obscene material.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them herein except where the context clearly indicates a different meaning:

Display shall mean to place in open view.

Harmful to minors shall mean any description or representation, in whatever form, of sexual conduct, when it:

- (1) Predominately appeals to the prurient interests of minors in sex, that is, an interest in lewdness or lascivious thoughts;
- (2) Depicts or describes sexual conduct in a manner so explicit as to be patently offensive to contemporary adult standards, in the city; and
- (3) Lacks serious literary, artistic, political or scientific value.

Knowingly shall mean having general knowledge of, or reason to know, or a belief or grounds for belief, which warrants further inspection or inquiry or both, as to:

- (1) The character and content of any material described herein, which is reasonably susceptible of examination by the defendant; and
- (2) The age of the minor, providing however, that an honest mistake shall constitute an excuse from liability hereunder if the defendant made a reasonable bona fide attempt to ascertain the true age of such a minor.

Minor shall mean any person less than eighteen (18) years of age.

Sexual conduct shall mean human masturbation; sexual intercourse, actual or simulated, normal or perverted; any touching of the genitals, pubic areas or buttocks of the human male or female, or the breasts of the female, whether alone or between members of the same or opposite sex, or between humans and animals; any depiction or representation of excretory functions; or any lewd exhibitions of the genitals, flagella-

tion or torture in the context of a sexual relationship. Sexual intercourse is simulated when it depicts explicit sexual intercourse which gives the appearance of the consummation of sexual intercourse, normal or perverted.

(b) *Purpose.* RSA 571-B:1 et seq., prohibits selling or loaning, for monetary consideration, to minors, certain materials therein described, which are harmful to minors. The purpose of this section is to prohibit commercial display of such materials in any manner where it is likely that minors will have unrestricted access to it.

(c) *Prohibition.* It shall be unlawful for any person to knowingly display material which is harmful to minors on the premises of any commercial establishment, if the room or area where the prohibited material is displayed, is open to minors; provided, in any prosecution under this section, it is an affirmative defense, which the defendant must prove by a preponderance of the evidence, that the prohibited material displayed:

- (1) Was, except for the title, name or identification, covered by a plain wrapper; or
- (2) Was not visible to any person whose eye level was less than sixty (60) inches above the place a person would normally stand to view the material.

(Ord. No. 178, §§ 1—3, 2-8-78)

State law references—Similar provisions, RSA 571-B:1 et seq.; obscene matter, RSA 650:1 et seq.

Sec. 9-2. Abandonment of refrigerators, etc.

(a) It shall be unlawful for any person to leave outside of any building or dwelling in a place accessible to children any abandoned, unattended or discarded ice box, refrigerator or any other container of any kind which has an airtight door or lock which may not be released for opening from the inside of the ice box, refrigerator or container.

(b) It shall be unlawful for any person to leave outside of any building or dwelling in a place accessible to children any abandoned, unattended or discarded ice box, refrigerator or any

other container of any kind which has an airtight snap-lock or other device thereon without first removing the snap-lock or doors from such ice box, refrigerator or container.

(Ord. No. 43, §§ 1, 2, 12-2-53)

Cross references—Buildings and building regulations, Ch. 5; housing, Ch. 7; mobile homes, § 10-46 et seq.; nuisances, Ch. 11; solid waste, Ch. 14.

State law reference—Similar provisions, RSA 147:21-a.

Sec. 9-3. Reserved.

Editor's note—Ord. No. 591, § 1, adopted August 25, 2021, repealed § 9-3, which pertained to weapons in public buildings—prohibited acts and derived from Ord. No. 394, 8-12-98.

